

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
DAVID PEREZ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. EDGAR RIVERA (SHIELD #5576)**

Defendant.

-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 22, 2021


MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER EDGAR RIVERA (SHEILD #5576)

52ND PRECINCT

3016 Webster Avenue

Bronx, NY 10467

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
DAVID PEREZ

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
P.O. EDGAR RIVERA (SHIELD #5576)**

Defendant.
=====X

Plaintiff DAVID PEREZ, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD") officers, including Edgar Rivera (hereinafter referred to as "RIVERA"), mentioned herein were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff David Perez (hereinafter referred to as “RIVERA”) is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 9:30pm on October 7, 2020, in and around the Grand Concourse and E. 188th Street, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. In the evening of October 7, 2020, at approximately 9:30pm, PEREZ left his residence in Bronx County and began walking on his way to his son's birthday party at his child's mother's home located at 170th Street, also in Bronx County.
10. After a couple minutes of walking, PEREZ saw his friend Devo Aldea driving by and asked for a ride to his destination. Mr. Aldea agreed, and PEREZ entered the vehicle, sitting in the front passenger seat.
11. After about 5 to 10 minutes in the vehicle, an unmarked NYPD vehicle pulled Mr. Aldea's car over.
12. Three uniformed NYPD officers, including RIVERA, stepped out of the unmarked NYPD vehicle and walked towards Mr. Aldea's vehicle.
13. Once at the vehicle, one of the unknown NYPD officers asked for Mr. Aldea's license and registration.
14. Despite having valid license and registration, Mr. Aldea and PEREZ were pulled out of the vehicle and searched.
15. While Mr. Aldea and PEREZ were searched, the third NYPD officer searched Mr. Aldea's vehicle..
16. No contraband was found on Mr. Aldea or PEREZ's person, but after search of the vehicle, Mr. Aldea and PEREZ were placed in the same NYPD vehicle and taken to the 52nd Precinct.
17. Once at the 52nd Precinct, PEREZ was photographed, fingerprinted, interrogated and strip searched.
18. PEREZ spent a few hours in the 52nd Precinct and then was brought to central booking, arriving at approximately 1:30am the next morning.

19. Once at central booking, PEREZ was appointed a Legal Aid lawyer and informed that he was being charged with felony gun possession, stemming from RIVERA alleging that there was a gun found in Mr. Aldea's trunk.
20. PEREZ went before a judge to be arraigned on the aforementioned charges and had bail set on his case in the amount of \$25,000.00.
21. PEREZ was not able to make the amount of bail set and languished on Riker's Island until February 26, 2021.
22. While on Rikers, PEREZ was assaulted and suffered physical injuries about his hands and body.
23. On February 26, 2021, PEREZ was released and continued to attend court on the aforementioned felony charges.
24. On July 23, 2021 the felony charges were dismissed and sealed.

FIRST CAUSE OF ACTION: FALSE ARREST

25. Paragraphs 1-24 are incorporated by reference as fully set forth herein
26. RIVERA arrested PEREZ intentionally, and PEREZ at all times was aware he was being arrested and did not consent to being arrested.
27. As a result of being arrested by RIVERA and the NYPD officers, PEREZ suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. The officers who arrested PEREZ, as described in paragraphs 8-24, intended to confine him. PEREZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. In arresting PEREZ as described in paragraphs 8-24, the arresting NYPD officers, including RIVERA, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

32. In arresting PEREZ as described in paragraphs 8-24, the arresting NYPD officers, including RIVERA, sought either a detriment to PEREZ or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

33. As a result of defendants' abuse of process, PEREZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. In arresting Plaintiff as described in paragraphs 8-24, the arresting NYPD officers, including RIVERA acted with malice and without probable cause.

36. As a result of being maliciously prosecuted by the arresting NYPD officers, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.

38. Upon information and belief, the NYPD officers, including RIVERA, who -- ---- illegally arrested PEREZ were at all times relevant duly appointed and acting officers of the City of New York Police Department.

39. At all times mentioned herein, said NYPD police officers, including RIVERA, were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

40. PEREZ is, and at all times relevant herein, a citizen of the United States and --- resident of Bronx County in the State of New York. He brings this cause of action --- pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

41. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

42. On or about October 7, 2020, as described in paragraphs 8-24, armed officers of the NYPD, while effectuating the seizure of PEREZ, searched, seized, and grabbed his person, without a court authorized arrest or search warrant. The

officers, including RIVERA, seized the person of PEREZ during the arrest process in an unlawful manner. PEREZ was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

43. The above actions of the arresting officers caused PEREZ to be deprived of the following rights under the United States Constitution:

- (a) Freedom from illegal search and seizure,
- (b) Freedom from false arrest,
- (c) Freedom from malicious prosecution,

44. The arresting NYPD officers, including RIVERA, subjected PEREZ to such deprivations, either in a malicious or reckless disregard of PEREZ's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

45. The direct and proximate result of the officers' acts are that PEREZ has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.

47. At all times hereinafter mentioned, the abuse of process and malicious prosecution were caused ~~and~~ by the negligence of Defendant CITY, its agents, servants and/or employees.

48. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

49. Paragraphs 1-48 are incorporated by reference as though fully set forth herein.

50. Defendant CITY has grossly failed to train and properly supervise its police officers, including PEREZ, regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

51. Defendant CITY was negligent by failing to implement a policy within its police department instructing NYPD police officers, including PEREZ, not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.

52. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

53. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENCE HIRING

54. Paragraphs 1-53 are incorporated by reference as though fully set forth herein.

55. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff DAVID PEREZ demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

September 22, 2021

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

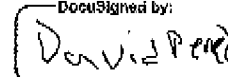
The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, ~~and that as to those matters, deponent believes these~~ to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
September 22, 2021

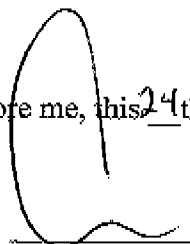
DocuSigned by:



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DAVID PEREZ

Subscribed and sworn to before me, this 24th day of September 2021


Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 11/26/22

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COUNTY OF THE BRONX**

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Plaintiff,

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Defendant.

SUMMONS & COMPLAINT

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